MunichTech GmbH

INFORMATION SECURITY MANAGEMENT SYSTEM

NIS-2 Betroffenheitsprüfung and BSI Registration Record

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Classification	Internal
Regulatory Basis	§§ 33, 34 BSIG (NIS2 Art. 27); § 28(2) BSIG (Anlage 1, Nr. 6.1.4)
ISO 27001:2022 Clauses	4.1, 4.2, 6.1.3, 7.5
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Version	*Date*	*Author*	*Change Description*
1.0	[Date]	Austin Bond	Initial issue. Self-assessment of NIS-2 applicability under Sec. 28 BSIG, classification as a wichtige Einrichtung, and record of registration under Sec. 33 BSIG.
1.1	[Date]	Austin Bond	Einrichtungsart corrected to Anlage 1 Nr. 6.1.4; § 34 and § 33(5) obligations added. Detail in Section 10.

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1. Purpose and Scope

This record documents MunichTech GmbH's self-assessment under § 28 BSIG, the resulting classification as a wichtige Einrichtung (important entity), and the registration submitted to the Federal Office for Information Security (BSI) under §§ 33 and 34 BSIG. It exists so that the classification decision can be reconstructed and defended at any point in the future, without relying on the recollection of the individuals who made it.

The record is an internal ISMS artifact. It is not a document issued by the BSI and must never be presented as one. Section 10 states precisely what it does and does not evidence.

2. Legal Basis

2.1 The NIS-2-Umsetzungsgesetz

Directive (EU) 2022/2555 (NIS-2) was transposed into German law by the NIS-2-Umsetzungsgesetz of 5 December 2025 (BGBl. 2025 I Nr. 301), which restructured the BSIG. The amended BSIG has applied since 6 December 2025.

The provisions relevant to this record are:

- § 28 BSIG — scope and the categories of Einrichtung, together with Anlage 1 (sectors and entity types) and the size thresholds.
- § 30 BSIG — risk-management measures (NIS2 Art. 21). For the Einrichtungsarten listed in § 30(3) — which include providers of cloud-computing services — the implementing act adopted by the Commission under NIS2 Art. 21(5), first subparagraph, takes precedence over the measures listed in § 30(2).
- § 32 BSIG — reporting obligations: early warning within 24 hours, notification within 72 hours, final report within one month (NIS2 Art. 23).
- § 33 BSIG — registration with the BSI (NIS2 Art. 27), and notification of any change to the registered data without undue delay and at the latest within two weeks of the entity becoming aware of it (§ 33(5)).
- § 34 BSIG — the extended registration duty for the Einrichtungsarten named in § 60(1) sentence 1, which include providers of cloud-computing services, and notification of any change to that extended data set without undue delay and at the latest within three months (§ 34(2)).
- § 38 BSIG — management-body accountability and training (NIS2 Art. 20).
- § 65 BSIG — administrative fines (NIS2 Art. 34).

2.2 Why a documented self-assessment

The BSIG does not require the BSI to certify an entity's status before obligations attach. An entity that meets the scope criteria is subject to those obligations of its own motion, and the burden of showing that it assessed its position correctly rests with the entity. A written, dated and approved Betroffenheitsprüfung is therefore the only reliable evidence that the decision was taken deliberately rather than assumed.

3. Self-Assessment of Applicability

Applicability was assessed on [Date] against the three cumulative criteria of § 28 BSIG: a listed sector and entity type, establishment in Germany, and satisfaction of the size test.

3.1 Criterion 1 — Sector and entity type

MunichTech GmbH operates a B2B SaaS platform supplying financial-data analytics and data-processing services to banks, insurers and asset managers. The service is delivered as a multi-tenant cloud service: clients obtain on-demand access over the internet to analytics capacity that MunichTech provisions, scales and operates on a shared pool of computing resources, rather than receiving software to install and run on systems of their own.

This places the entity in Anlage 1, Sektor 6 "Digitale Infrastruktur", Einrichtungsart Nr. 6.1.4 — Anbieter von Cloud-Computing-Diensten. The definition in § 2 Nr. 4 BSIG is met on its own terms: MunichTech provides a digital service that enables, on demand, the administration of a scalable and elastic pool of shared computing resources together with comprehensive remote access to that pool, and the fact that the resources are distributed across several locations does not alter that.

The adjacent Einrichtungsarten 6.1.10 (Managed Services Provider) and 6.1.11 (Managed Security Services Provider) were considered and rejected. § 2 Nr. 26 BSIG defines a managed service provider as one that installs, administers, operates or maintains ICT products, networks, infrastructure, applications or other network and information systems in support of, or by actively managing, a customer's systems, whether on the customer’s premises or remotely. MunichTech does not administer or monitor systems belonging to its clients. It operates one platform of its own and returns analytics derived from data that clients submit to it, which is the supply of a cloud service, not the management of a third party’s ICT estate. Einrichtungsart 6.1.11 fails for the same reason and, additionally, because MunichTech provides no cybersecurity risk-management services to third parties, which is what distinguishes an MSSP from an MSP.

An earlier internal position classified the entity against NIS2 Annex II, the providers of digital services (online marketplaces, search engines and social networks). That position was wrong and has been withdrawn. Annex II covers consumer-facing digital services; MunichTech provides none of the three listed service types. A second position, recorded in versions of this document up to 1.0, classified the entity as "IKT-Dienstleistungsmanagement (B2B)" — a category that does not exist in Anlage 1, and one carried over from the wording of NIS2 Annex I, which Germany split into Einrichtungsarten 6.1.10 and 6.1.11. That position has also been withdrawn, for the reasons set out above.

3.2 Criterion 2 — Establishment in Germany

MunichTech GmbH is incorporated and headquartered in Munich and provides its services from Germany. No establishment exists in another Member State, so the BSI is the competent authority and no cross-border coordination under NIS2 Art. 26 arises.

3.3 Criterion 3 — Size test

The size test is applied to the entity as a whole, not to a business unit, customer segment or product line:

- Employees: 50, by headcount and by full-time equivalent. The medium-sized threshold is 50 or more.
- Annual turnover: EUR 12.4 million. The financial threshold is more than EUR 10 million.
- Balance-sheet total: below EUR 10 million. That matters, because § 28(2) Nr. 3 BSIG offers two alternative routes and its financial route requires a turnover above EUR 10 million and, in addition, a balance-sheet total above EUR 10 million. The entity does not meet the financial route.

The conclusion therefore rests on the headcount route in § 28(2) Nr. 3 lit. a alone: at 50 employees the entity employs at least 50 employees within the meaning of that provision, whatever view is taken of the financial route. It is not sensitive to the balance-sheet figure, but it is sensitive to headcount, which is why a fall to 49 or below is a review trigger in Section 9.

3.4 Conclusion

Result: MunichTech GmbH is a wichtige Einrichtung within the meaning of § 28(2) BSIG, Anlage 1, Sektor 6, Einrichtungsart Nr. 6.1.4 (Anbieter von Cloud-Computing-Diensten). The obligations of the BSIG applied to the entity in full from 6 December 2025, independently of the registration date.

4. Classification as a wichtige Einrichtung

The BSIG distinguishes two categories of entity. Besonders wichtige Einrichtungen are large entities — more than 249 employees, or more than EUR 50 million turnover and more than EUR 43 million balance-sheet total — together with a defined group of critical operators. Wichtige Einrichtungen are medium-sized entities operating in a listed sector.

MunichTech GmbH is a medium-sized entity and is therefore a wichtige Einrichtung. It is not a besonders wichtige Einrichtung, and nothing in this record should be read as claiming otherwise.

The distinction is not cosmetic. It sets the fine ceiling under § 65 BSIG — up to EUR 10 million or 2% of worldwide annual turnover for besonders wichtige Einrichtungen, up to EUR 7 million or 1.4% for wichtige Einrichtungen — and it determines the intensity of BSI supervision. Applying the wrong tier overstates the exposure and damages the credibility of the assessment in front of clients and auditors.

5. Registration under §§ 33 and 34 BSIG

5.1 Timeline

- 6 December 2025 — the amended BSIG enters into force; obligations apply from this date.
- 6 January 2026 — the BSI registration portal opens.
- 6 March 2026 — statutory registration deadline, three months after entry into force.
- 18 February 2026 — MunichTech GmbH submits its registration.

Registration was completed ahead of the statutory deadline, leaving room to correct any field the BSI subsequently queries without the entity falling into breach. That allowance was used. The October 2026 re-assessment described in Section 9 found that the Einrichtungsart recorded at registration had been carried over from the NIS2 Annex I label rather than taken from Anlage 1, and that the public IP address field, which § 33(1) Nr. 2 BSIG requires, had been answered "not applicable" when the accurate answer was "no allocation held". The corrected data set was filed under § 33(5) BSIG on 21 October 2026, and the corresponding notification under § 34(2) BSIG was filed on the same date.

5.2 Route taken

Registration followed the two-step route operated by the BSI. Access is federated through Mein Unternehmenskonto (MUK), and the entity data set is then entered in the BSI registration portal. Because the MUK account authenticates the legal entity rather than a natural person, the registration is bound to MunichTech GmbH; the named contact point can change without re-registering the entity. Because MunichTech is an Einrichtungsart named in § 60(1) sentence 1 BSIG, the § 33 registration is accompanied by the extended submission required by § 34 BSIG. The two are cumulative rather than alternative: § 33 registers the entity, and § 34 adds the data set the BSI needs in order to exercise the central competence it holds for the whole Union under § 60(1), which rests with it because the entity's EU headquarters is in Germany. Under § 34(3) the BSI forwards that data set to ENISA, with the exception of the public IP address ranges.

5.3 Submitted data set

The following fields were submitted. This table is the internal record of the registration content, restated as corrected in October 2026, and is the baseline for any later update. The portal submission remains the authoritative copy of the filed data set; where the two diverge, the portal copy governs and this table is corrected to match it.

Field	*Value submitted*
Entity name	MunichTech GmbH
Registered address	Munich, Bavaria, Germany
Legal form	GmbH
Sector	Anlage 1, Sektor 6 — Digitale Infrastruktur, Nr. 6.1.4
Entity type	Anbieter von Cloud-Computing-Diensten

Entity category	wichtige Einrichtung
Member States of service provision	Germany only; no other Member State
Contact point	IT Security Lead, via the security functional mailbox
Telephone and website	Held in the BSI portal; not reproduced in this document
IP ranges and domain identifiers	No allocation held. MunichTech holds no provider-independent address space and no allocation from a regional internet registry; its platform is reachable only through AWS-managed addresses (Elastic Load Balancing, CloudFront), which rotate and cannot honestly be described as the entity's own ranges. Because § 33(1) Nr. 2 and § 34(1) Nr. 6 BSIG both require the statement, the filings record that fact and the reason rather than leaving the field blank.
Registration submitted	18 February 2026

5.4 Evidence retained

The following items are held in the ISMS evidence register and together demonstrate that registration took place:

- EV-REG-001 — capture of the BSI portal submission confirmation, timestamped 18 February 2026.
- EV-REG-002 — system-generated acknowledgement of receipt from the BSI portal.
- EV-REG-003 — MUK account record identifying MunichTech GmbH as the authenticated legal entity.
- EV-REG-004 — corrected data set filed under § 33(5) BSIG, timestamped 21 October 2026: Einrichtungsart changed to Anlage 1 Nr. 6.1.4 and the public IP address field completed.
- EV-REG-005 — notification under § 34(2) BSIG of the same change to the extended data set, timestamped 21 October 2026.

The BSI does not issue a registration certificate. No document in this portfolio has been created to resemble one, and this record deliberately does not quote a registration number.

6. Contact Point and Communication with the BSI

§ 33 BSIG requires a designated contact point. MunichTech GmbH has named the IT Security Lead as primary contact and the Managing Director as deputy, reachable through a functional mailbox so that the contact survives staff turnover. The contact details on file with the BSI are verified at each management review; a stale contact point is itself a compliance finding.

Inbound BSI correspondence is handled as a regulatory communication. It is logged on receipt, acknowledged within two business days, and assigned to the IT Security Lead, who reports material items to the management review.

7. Resulting Obligations

The classification triggers a defined set of obligations. Each is owned and evidenced elsewhere in the ISMS, so this record does not restate the detail:

Obligation	*BSIG provision*	*Where it is discharged*
Risk-management measures across the ten NIS2 Art. 21 areas, and the technical and methodological requirements of the Art. 21(5) implementing act where it takes precedence (§ 30(3))	§ 30 BSIG	Information Security Policy (MT-ISMS-POL-001); Statement of Applicability (MT-ISMS-SOA-001)
Incident reporting: 24-hour early warning, 72-hour notification, one-month final report	§ 32 BSIG	NIS-2 Incident Reporting Workflow (MT-NIS2-IRP-001)
Registration, and update of registered data on material change	§ 33 BSIG	This record
Extended registration content under § 60(1) BSIG, and notification of changes to it within three months	§ 34 BSIG	This record, Section 5
Management-body approval, oversight and training	§ 38 BSIG	Information Security Policy; Management Review Agenda (MT-ISMS-MRA-001)
Supply-chain security for direct suppliers and service providers	§ 30 BSIG (NIS2 Art. 21(2)(d))	Information Asset Register (MT-ISMS-IAR-001); supplier assessments

The BSIG also defines a near miss ("Beinahevorfall", § 2 Nr. 1 BSIG). The incident reporting workflow handles near misses alongside incidents, so that a narrowly avoided outage is analysed even where no notification obligation is triggered.

8. Interfaces with the ISMS

This record is not standalone. It fixes inputs on which other artifacts depend, and a change here propagates:

Artifact	*Dependency*
Scope and Context Document (MT-ISMS-SCO-001)	Carries the entity classification and the legal-register entry in its Clause 4.1 and 4.2 analysis
Risk Register (MT-ISMS-RR-001)	Holds the compliance risk of misclassification and of a missed § 32 reporting deadline
Statement of Applicability (MT-ISMS-SOA-001)	A.5.31 (legal, statutory and regulatory requirements) and A.5.5 (contact with authorities)
NIS-2 Incident Reporting Workflow (MT-NIS2-IRP-001)	Operationalises § 32 BSIG and uses the contact point established here

Internal Audit Checklist (MT-ISMS-AUD-001)	Tests that the registered data set still matches the entity as it operates today

9. Review and Re-Assessment

The assessment is re-performed, and the classification re-confirmed or revised, whenever any of the following occurs:

- Headcount falls below 50, or turnover below EUR 10 million, for two consecutive financial years — a possible basis for leaving scope, although exit is not automatic and the BSI does not grant it on request.
- A change in the nature of the service, such that the Einrichtungsart in Anlage 1 changes.
- Expansion into another Member State, which may change the competent authority.
- Merger, acquisition, change of legal form or change of control.
- A BSI publication that changes the sector mapping or the interpretation of the size test, or the entry into force of a Commission implementing act under NIS2 Art. 21(5) that binds the entity through § 30(3).
- In any event annually, as a standing item at the management review.

A revised assessment never silently overwrites this one. Each re-assessment is issued as a new version with its own revision-history row, and the superseded version is retained as evidence of how the position evolved. Two clocks govern the record itself and must not be conflated: a change to the § 33 data set is filed without undue delay and at the latest within two weeks of the entity becoming aware of it (§ 33(5)), while a change to the § 34 data set is filed without undue delay and at the latest within three months (§ 34(2)). A re-assessment that changes no filed field requires no filing; one that changes a field starts that clock on the day the change is known.

10. Limitations of This Record

Stating the limits of the evidence is part of presenting it honestly:

- This is a self-assessment. The BSI has neither audited nor approved the classification, and no BSI endorsement is implied.
- This is not a BSI registration certificate. No such certificate exists, and none has been simulated for this portfolio.
- The record evidences that a registration was submitted. It does not guarantee that the BSI will accept every field; corrections requested by the BSI are logged against this record.
- The legal analysis reflects the BSIG as in force on the date of issue. A later amendment, or a change in BSI guidance, may change the conclusion.
- It evidences an internal decision, not compliance with §§ 30, 32 and 38 BSIG. Those obligations are evidenced by their own artifacts.
- Version 1.1 changes the Einrichtungsart recorded in version 1.0. "IKT-Dienstleistungsmanagement (B2B)" is not an Einrichtungsart in Anlage 1 BSIG; the entity is an Anbieter von Cloud-Computing-Diensten under Nr. 6.1.4. The correction does not change the entity category, the obligations that apply or the fine tier, but it does change the registration route, because Nr. 6.1.4 is one of the Einrichtungsarten listed in § 60(1) sentence 1 BSIG.

11. Document Sign-Off

By signing below, the Managing Director confirms that the entity classification recorded in this document is accepted, and that the obligations arising from it are resourced within the ISMS.

DOCUMENT APPROVAL

PREPARED BY	
Name	Austin Bond
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